Terms and conditions of sale

MTRobotix · equipment and services · Vietnam

> **Draft for lawyer review.** Not legally reviewed. Version [1.0], effective [DD/MM/YYYY].

1. Application	These terms apply to every quotation, order and delivery by MTRobotix (“MTR”). Order of precedence: signed change orders, quotation, proposal, these terms. Customer terms on a PO do not apply unless MTR accepts them in writing.
2. Prices	In VND, excluding VAT. Fixed for the quotation validity period. VAT charged at the rate in force on the invoice date.
3. Orders	An order is binding when MTR receives the customer PO and the deposit, and issues an order confirmation.
4. Payment	As in the quotation. Invoices due within [15] days. Overdue amounts bear interest at [ ]% per month. MTR may suspend work while a payment is overdue.
5. Delivery	Dates run from receipt of PO and deposit. Dates move by any delay in customer inputs, approvals, site readiness or payments.
6. Customer obligations	Provide samples, information, approvals, utilities, line access and a safe workplace on time, as listed in the proposal.
7. Changes	Scope, price and date changes only by a change order signed by both parties.
8. Testing and acceptance	FAT at MTR, SAT at site, per the proposal. The station is accepted when the SAT acceptance certificate is signed, or when the customer uses it in production, or [10] days after MTR notifies readiness for SAT if SAT is delayed by the customer.
9. Title and risk	Risk passes on signature of the delivery note. Title passes on full payment.
10. Warranty	12 months from SAT for defects in MTR supply. Remedy: repair or replacement. Excludes consumables, misuse, accidents, changes by others, unapproved hardware or software, and conditions outside the agreed scope.
11. Liability	Total liability limited to the contract value. No liability for indirect loss, lost production, profit or data.
12. Software, IP and data	MTR owns the MetriQ software and all designs; the customer receives a perpetual, non-transferable licence for the station supplied. The customer owns its images and production data. MTR uses them for that customer only, unless the customer agrees in writing.
13. Confidentiality	Each party keeps the other’s confidential information secret and uses it only for the order. A signed NDA prevails.
14. Force majeure	Neither party is liable for delay caused by events beyond its reasonable control. Either party may terminate if the event lasts more than [90] days.
15. Cancellation	The customer may cancel in writing and pays work done, parts bought or committed, and costs incurred to the cancellation date.
16. Law and disputes	Vietnamese law. Disputes: negotiation for 30 days, then [Vietnam International Arbitration Centre (VIAC) / court of [city]].
17. Whole agreement	The order documents above are the whole agreement and replace earlier discussions.